

IN THE CIRCUIT COURT OF THE NINETEENTH JUDICIAL CIRCUIT
IN AND FOR MARION COUNTY, FLORIDA

CHRISTINA KACZAR

Plaintiff,

CASE NUMBER:

vs.

UNITED SERVICES AUTOMOBILE
ASSOCIATION and
USAA GENERAL INDEMNITY COMPANY

Defendants.

COMPLAINT

COMES NOW the Plaintiff, CHRISTINA KACZAR, and sues Defendants, UNITED SERVICES AUTOMOBILE ASSOCIATION (hereafter "USAA") and USAA GENERAL INDEMNITY COMPANY (hereafter "INDEMNITY"), and alleges:

1. This is an action for damages that exceeds \$15,000.00 exclusive of costs and attorney fees.
2. At all times material hereto, Plaintiff, CHRISTINA KACZAR resided in, Marion County, Florida.
3. At all times material hereto, Defendant, USAA, was authorized and doing business in the State of Florida as an insurance company.
4. At all times material hereto, the Defendant, USAA, issued a policy of insurance, policy number 37512438, providing uninsured/underinsured motor vehicle insurance coverage and/or benefits to CHRISTINA KACZAR in the amount of \$50,000 per person.
5. At all times material hereto, Defendant, INDEMNITY, was authorized and doing business in the State of Florida as an insurance company.

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6. At all times material hereto, the Defendant, INDEMNITY, issued a policy of insurance, policy number 3037512403G71019, providing uninsured/underinsured motor vehicle insurance coverage and/or benefits to CHRISTINA KACZAR in the amount of \$50,000 per person.

7. On or about March 26, 2017, on Interstate 75 in Marion County, Florida, Plaintiff, CHRISTINA KACZAR, was involved in a motor vehicle accident when ANDREW BUIE, who was an underinsured motorist, negligently caused his vehicle to crash onto the vehicle being driven by Plaintiff, CHRISTINA KACZAR.

8. That as a result of motor vehicle accident described above, the Plaintiff, CHRISTINA KACZAR, suffered multiple injuries and pain there from, incurred medical treatment for such injuries and expense of hospitalization and medical care and treatment, and suffered physical handicap, disability, mental anguish, loss of capacity for the enjoyment of life, loss of earnings, and her future working and earning capacity was impaired. These losses are either permanent or continuing in nature, and the Plaintiff, CHRISTINA KACZAR, will continue to suffer such losses in the future.

9. The Plaintiff, CHRISTINA KACZAR, has complied with all conditions precedent prior to bringing forth this cause of action.

COUNT I
.BREACH OF UNDERINSURED MOTORIST CONTRACT AGAINST DEFENDANT
USAA

10. The Plaintiff, CHRISTINA KACZAR, hereby incorporates and re-alleges paragraphs one (1) through nine (9) as if fully set forth herein.

11. This is an action for underinsured motorist benefits, by the Plaintiff, CHRISTINA KACZAR, for damages sustained due to the negligence of an underinsured motorist.

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12. That despite demands by the Plaintiff, CHRISTINA KACZAR, to date, the Defendant, USAA, has refused and continues to refuse to honor the Plaintiff, CHRISTINA KACZAR's, request for payment under the applicable underinsured motorist provisions of the USAA policy.

13. That the Plaintiff has demanded payment of underinsured motorist benefits from the Defendant, USAA, but the Defendant has failed and refused to pay the same which is a breach of the underinsurance contract with the Plaintiff.

14. That as a result of the collision set forth herein, the Plaintiff, CHRISTINA KACZAR, has suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical nursing care and treatment, lost wages, loss of ability to earn money, and aggravation of a previously existing condition. The losses are either permanent or continuing in nature and the Plaintiff will continue to suffer the losses in the future.

WHEREFORE Plaintiff, CHRISTINA KACZAR, sues the Defendant, UNITED SERVICES AUTOMOBILE ASSOCIATION, for compensatory damages in an amount within the jurisdictional limits of this Court, to-wit: in excess of Fifteen Thousand (\$15,000.00) Dollars, exclusive of interest and costs, and demands a trial by jury of all issues triable as a right by a jury.

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COUNT II
BREACH OF UNDERINSURED MOTORIST CONTRACT AGAINST DEFENDANT
USAA GENERAL INDEMNITY COMPANY

15. The Plaintiff, CHRISTINA KACZAR, hereby incorporates and re-alleges paragraphs one (1) through nine (9) as if fully set forth herein.

16. This is an action for underinsured motorist benefits, by the Plaintiff, CHRISTINA KACZAR, for damages sustained due to the negligence of an underinsured motorist.

17. That despite demands by the Plaintiff, CHRISTINA KACZAR, to date, the Defendant, INDEMNITY, has refused and continues to refuse to honor the Plaintiff, CHRISTINA KACZAR's, request for payment under the applicable underinsured motorist provisions of the INDEMNITY policy.

18. That the Plaintiff has demanded payment of underinsured motorist benefits from the Defendant, INDEMNITY, but the Defendant has failed and refused to pay the same which is a breach of the underinsurance contract with the Plaintiff.

19. That as a result of the collision set forth herein, the Plaintiff, CHRISTINA KACZAR, has suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical nursing care and treatment, lost wages, loss of ability to earn money, and aggravation of a previously existing condition. The losses are either permanent or continuing in nature and the Plaintiff will continue to suffer the losses in the future.

WHEREFORE Plaintiff, CHRISTINA KACZAR, sues the Defendant, UNITED SERVICES AUTOMOBILE ASSOCIATION GENERAL INDEMNITY COMPANY, for compensatory damages in an amount within the jurisdictional limits of this Court, to-wit: in

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excess of Fifteen Thousand (\$15,000.00) Dollars, exclusive of interest and costs, and demands a trial by jury of all issues triable as a right by a jury.

RESPECTFULLY SUBMITTED on this 17th day of April, 2018.

s/ R. JEREMY HILL

R. JEREMY HILL, ESQ. (FBN: 65718)

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